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S.I. No. 291/1979 - European Space Agency (Designation of Organisation) Order, 1979.

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EUROPEAN SPACE AGENCY (DESIGNATION OF ORGANISATION) ORDER, 1979.

WHEREAS it is enacted by section 40 (1) of the Diplomatic Relations and Immunities Act, 1967 (No. 8 of 1967), that the Government may by order designate an international organisation, community or body of which the State intends to become a member:

AND WHEREAS the European Space Agency is such an organisation as aforesaid:

NOW, the Government, in exercise of the powers conferred on them by section 40 of the said Diplomatic Relations and Immunities Act, 1967 , hereby order as follows:

1. This Order may be cited as the European Space Agency (Designation of Organisation) Order, 1979.
2. The European Space Agency is hereby designated as an organisation to which Part VIII of the Diplomatic Relations and Immunities Act, 1967 (No. 8 of 1967), applies.
3. Annex 1 (the terms of which are set out in the Schedule to this Order) to the Convention for the Establishment of a European Space Agency done at Paris on the 30th day of May, 1975, shall apply for the purposes of section 42 of the Diplomatic Relations and Immunities Act, 1967 .

SCHEDULE

ARTICLE I

The Agency shall have legal personality. It shall in particular have the capacity to contract, to acquire and dispose of movable and immovable property and to sue and be sued in legal proceedings.

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ARTICLE II

Without prejudice to Articles XXII and XXIII, the buildings and premises of the Agency shall be inviolable.

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ARTICLE III

The archives of the Agency shall be inviolable.

ARTICLE IV

1. The Agency shall have immunity from jurisdiction and execution, except

a) to the extent that it shall, by decision of the Council, have expressly waived such immunity in a particular case; the Council has the duty to waive this immunity in all cases where reliance upon it would impede the course of justice and it can be waived without prejudicing the interests of the Agency;

b) in respect of a civil action by a third party for damage arising from an accident caused by a motor vehicle belonging to, or operated on behalf of, the Agency, or in respect of a motor traffic offence involving such a vehicle;

c) in respect of an enforcement of an arbitration award made under either Article XXV or Article XXVI;

d) in the event of the attachment, pursuant to a decision by the judicial authorities, of the salaries and emoluments owed by the Agency to a staff member.

2. The Agency's property and assets, wherever situated, shall be immune from any form of requisition, confiscation, expropriation and sequestration. They shall also be immune from any form of administrative or provisional judicial constraint, except insofar as may be temporarily necessary in connection with the prevention and investigation of accidents involving motor vehicles belonging to, or operated on behalf of the Agency.

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ARTICLE V

1. Within the scope of its official activities, the Agency, its property and income shall be exempt from direct taxes.

2. When purchases or services of substantial value and strictly necessary for the exercise of the official activities of the Agency are made or used by or on behalf of the Agency, and when the price of such purchases or services includes taxes or duties, appropriate measures shall, whenever possible, be taken by the Member States to grant exemption from such taxes or duties or to provide for their reimbursement.

ARTICLE VI

Goods imported or exported by the Agency or on its behalf, and strictly necessary for the exercise of its official activities, shall be exempt from all import and export duties and taxes and from all import or export prohibitions and restrictions.

ARTICLE VII

1. For the purpose of Articles V and VI, the official activities of the Agency shall include its administrative activities, including its operations in connection with the social security scheme, and activities undertaken in the field of space research and technology and their space applications in pursuance of the purpose of the Agency as defined in the Convention.

2. The extent to which other applications of such research and technology and activities carried out under Articles V. 2 and IX of the Convention may be considered part of the Agency's official activities shall be decided in each case by the Council after consultation with the competent authorities of the Member States concerned.

3. The provisions of Articles V and VI shall not apply to taxes and duties that are no more than charges for public utility services.

ARTICLE VIII

No exemption shall be granted under Articles V or VI in respect of goods purchased or imported, or services provided, for the personal benefit of the staff members of the Agency.

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ARTICLE IX

1. Goods acquired under Article V or imported under Article VI shall not be sold or given away except in accordance with conditions laid down by the Member States which have granted exemptions.

2. The transfer of goods and services between the Headquarters and the establishments of the Agency, and between its various establishments, or, for the purpose of implementing a programme of the Agency, between them and a national institution of a Member State, shall be free of charges or restrictions of any kind; if necessary, the Member States shall take all appropriate measures to grant exemption from or reimbursement of such charges or to lift such restrictions.

ARTICLE X

The circulation of publications and other information material sent by or to the Agency shall not be restricted in any way.

ARTICLE XI

The Agency may receive and hold any kind of funds, currency, cash or securities; it may dispose of them freely for any purpose provided for in the Convention and hold accounts in any currency to the extent required to meet its obligations.

ARTICLE XII

1. For its official communications and the transfer of all its documents, the Agency shall enjoy treatment not less favourable than that accorded by each Member State to other international organisations.
2. No censorship shall be applied to official communications of the Agency by whatever means of communication.

ARTICLE XIII

Member States shall take all appropriate measures to facilitate the entry into, stay in, or departure from their territories of staff members of the Agency.

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ARTICLE XIV

1. Representatives of Member States shall, while exercising their functions and in the course of their journeys to and from the place of meeting, enjoy the following privileges and immunities:

- a) immunity from arrest and detention, and from seizure of their personal luggage;
- b) immunity from jurisdiction, even after the termination of their mission, in respect of acts, including words spoken and written, done by them in the exercise of their functions; this immunity shall not apply, however, in the case of a motor traffic offence committed by a representative of a Member State, nor in the case of damage caused by a motor vehicle belonging to or driven by him;
- c) inviolability for all their official papers and documents;
- d) the right to use codes and to receive documents or correspondence by special courier or sealed bag;
- e) exemption for themselves and their spouses from all measures restricting entry and from aliens' registration formalities;
- f) the same facilities in the matter of currency and exchange control as are accorded to the representatives of foreign governments on temporary official missions;
- g) the same customs facilities as regards their personal luggage as are accorded to diplomatic agents.

2. Privileges and immunities are accorded to representatives of Member States, not for their personal advantage, but in order to ensure complete independence in the exercise of their functions in connection with the Agency. Consequently, a Member State has the duty to waive the immunity of a representative wherever retaining it would impede the course of justice and it can be waived without prejudicing the purposes for which it was accorded.

ARTICLE XV

By clicking "Accept All Cookies", you agree to the storing of cookies on your device to enhance site navigation, analyze site usage, and assist in our marketing efforts. In addition to the privileges and immunities provided for in Article XVI, the Director General of the Agency and, when the office is vacant, the person appointed to act in his place, shall enjoy the privileges and immunities to which diplomatic agents of comparable rank are entitled.

ARTICLE XVI

The staff members of the Agency

- a) shall have, even after they have left the service of the Agency, immunity from jurisdiction in respect of acts, including words written and spoken, done by them in the exercise of their functions; this immunity shall not apply, however, in the case of a motor traffic offence committed by a staff member of the Agency, nor in the case of damage caused by a motor vehicle belonging to or driven by him;
 - b) shall be exempt from all obligations in respect of military service;
 - c) shall enjoy inviolability for all their official papers and documents;
 - d) shall enjoy the same facilities as regards exemption from all measures restricting immigration and governing aliens' registration as are normally accorded to staff members of international organisations, and members of their families forming part of their households shall enjoy the same facilities;
 - e) shall enjoy the same privileges in respect of exchange regulations as are normally accorded to staff members of international organisations;
 - f) shall, in time of international crisis, enjoy the same facilities as to repatriation as diplomatic agents, and the members of their families forming part of their households shall enjoy the same facilities;
 - g) shall have the right to import duty-free their furniture and personal effects at the time of first taking up their post in the Member State concerned, and the right on the termination of their functions in that Member State to export free of duty their furniture and personal effects, subject, in both cases, to the conditions considered necessary by the Member State on whose territory the right is exercised.
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ARTICLE XVII

Experts other than the staff members referred to in Article XVI, in the exercise of their functions in connection with the Agency or in carrying out missions for the Agency, shall enjoy the following privileges and immunities, to the extent that these are necessary for the exercise of their functions, including during journeys made in the exercise of their functions and in the course of such missions:

- a) immunity from jurisdiction in respect of acts, including words written and spoken, done by them in the exercise of their functions, except in the case of a motor traffic offence committed by an expert, or in the case of damage caused by a motor vehicles belonging to or driven by him; experts shall continue to enjoy this immunity after they have ceased to be employed by the Agency;
- b) inviolability for all their official papers and documents;
- c) the same facilities as regards monetary and exchange regulations and as regards their personal luggage as are accorded to the officials of foreign governments on temporary official missions.

ARTICLE XVIII

1. Subject to the conditions and following the procedure laid down by the Council, the Director General and the staff members of the Agency shall be subject to a tax, for the benefit of the Agency, on salaries and emoluments paid by the Agency. Such salaries and emoluments shall be exempt from national income tax; but the Member States shall retain the right to take these salaries and emoluments into account for the purpose of assessing the amount of taxation to be applied to income from other sources.
2. The provisions of paragraph 1 shall not apply to annuities and pensions paid by the Agency to its former Directors General and staff members.

ARTICLE XIX

Articles XVI and XVIII shall apply to all categories of staff members to which the Staff Regulations of the Agency apply. The Council shall decide the categories of experts to which Article XVII shall apply. The names, titles and addresses of the staff members and experts referred to in the present Article shall be communicated from time to time to the Member States.

ARTICLE XX

In the event that it establishes its own social security scheme, the Agency, its Director General and staff members shall be exempt from all compulsory contributions to national social security bodies, subject to agreements concluded with the Member States in accordance with Article XXVIII.

ARTICLE XXI

1. The privileges and immunities provided for in this Annex are not granted to the Director General, staff members and experts of the Agency for their personal advantage. They are provided solely to ensure, in all circumstances, the unimpeded functioning of the Agency and the complete independence of the persons to whom they are accorded.
2. The Director General has the duty to waive any relevant immunity in all cases wherever retaining it would impede the course of justice and it can be waived without prejudicing the interests of the Agency. In the case of the Director General, the Council is competent to waive such immunity.

ARTICLE XXII

1. The Agency shall cooperate at all times with the competent authorities of Member States in order to facilitate the proper administration of justice, to ensure the observance of police regulations and regulations concerning the handling of explosives and inflammable material, public health, labour inspection or other similar national legislation, and to prevent any abuse of the privileges, immunities and facilities provided for in this Annex.
2. The procedure for the cooperation referred to in paragraph 1 may be laid down in the complementary agreements referred to in Article XXVIII.

ARTICLE XXIII

Each Member State shall retain the right to take all precautionary measures in the interests of its security.

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ARTICLE XXIV

No Member State shall be obliged to accord the privileges and immunities referred to in Articles XIV, XV, XVI (b), (e) and (g) and XVII (c) to its own nationals or persons who, at the moment of taking up their duties in that Member State, are permanent residents thereof.

ARTICLE XXV

1. When concluding written contracts, other than those concluded in accordance with the Staff Regulations, the Agency shall provide for arbitration. The arbitration clause or the special arbitration agreement concluded to this end shall specify the law applicable and the country where the arbitrators sit. The arbitration procedure shall be that of that country.

2. The enforcement of the arbitration award shall be governed by the rules in force in the State on whose territory the award is to be executed.

ARTICLE XXVI

Any Member State may submit to the international Arbitration Tribunal referred to in Article XVII of the Convention any dispute

a) arising out of damage caused by the Agency;

b) involving any other non-contractual responsibility of the Agency;

c) involving the Director General, a staff member or an expert of the Agency and in which the person concerned can claim immunity from jurisdiction under Articles XV, XVI (a) or XVII (a), if this immunity is not waived in accordance with Article XXI. In such disputes where the claim for immunity from jurisdiction arises under Articles XVI (a) or XVII (a), the responsibility of the Agency shall in such arbitration be substituted for that of the persons referred to in those Articles.

ARTICLE XXVII

The Agency shall make suitable provision for the satisfactory settlement of disputes arising between the Agency and the Director General, staff members or experts in respect of their conditions of service.

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ARTICLE XXVIII

The Agency may, on a decision of the Council, conclude with one or more Member States complementary agreements to give effect to the provisions of this Annex as regards such State or States, and other arrangements to ensure the efficient functioning of the Agency and the safeguarding of its interests.

GIVEN under the Official Seal of the Government, this 24th day

of July, 1979.

SEÁN Ó LOINSIGH,

Taoiseach.

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